

own candidates (preferably two each) from which the Court will select. Either an agreement or a list of candidates shall be submitted to the Court no later than January 5th, 2026.

Because Harry is not a party to the case, he may consider whether to file a motion to intervene in this matter. In addition, the Court will consider whether to consolidate an apparently related matter, *Karris v. Cherne* (C25-01808), in which Harry has sued Jill for relief related to the same transactions and events, and Jill has cross-complained.

Pending the resolution of the issues identified above, Harry's authority as guardian ad litem shall continue only to carry out the acts necessary to comply with this order.

Betty Jean's counsel in the motion to vacate the appointment of the guardian ad litem requests \$4,800 in sanctions under Code of Civil Procedure section 128.7 for "bad faith or improper tactics[.]" Counsel have not, however, fulfilled the requirements of the "safe harbor" notice and separate filing requirement of section 128.7(c)(1). **Sanctions are denied.**

The motion to vacate appointment of guardian ad litem shall be continued to a date an appropriate date based on the date of the mental examination. **The Parties shall appear to discuss scheduling the matter.**

13. 9:00 AM CASE NUMBER: C25-02371
CASE NAME: BETTY KARRIS VS. JILL CHERNE
***HEARING ON MOTION IN RE: SETTING ASIDE ORDER APPOINTING GAL HARRY ATHAN KARRIS**
FILED BY: KARRIS, BETTY JEAN
TENTATIVE RULING:
See line 12.

14. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION PRO HAC VICE AS TO BELINDA GRUNFELD FOR DEF
FILED BY: SYNGENTA AG,
TENTATIVE RULING:
Granted.

15. 9:00 AM CASE NUMBER: MSC19-01155
CASE NAME: JOANN BRADFORD VS. CHEVRON U.S.A. INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS**
FILED BY: BRADFORD, JOANN
TENTATIVE RULING:

Plaintiffs move to compel further production of documents and for monetary sanctions. This is a wage & hour class action, in which Chevron earlier had produced certain information concerning the employees in the certified class. At one point, it became known that there were another 134 class members for whom time records and payroll information had not been produced. After informal

agreements did not result in the production of the documents, plaintiffs served formal requests. An objections-only response was made, raising numerous objections. Objections included that the requests violated the privacy of the employees, that the requests were vague and ambiguous, that the documents were not reasonably accessible, that the documents were not relevant or reasonably calculated to lead to the discovery of admissible evidence, and that the requested documents were confidential.

Meet and confer efforts were not successful. Plaintiffs filed this motion, making a reasonable prima facie argument as to why the documents should have been produced. Chevron has not filed an opposition. Plaintiffs seek an order compelling production in 7 days, and sanctions in the amount of \$28,969.

The motion initially was filed and served on October 24, 2025, and set for April 23, 2026, but was advanced by the Court pursuant to plaintiffs' ex parte application to December 11, 2025. The order was entered on November 13, 2025, but was served (electronically) on November 17, 2025, which is 16 court days before the hearing.

Plaintiffs' showing is sufficient, in the absence of opposition, to grant the motion. Defendant is ordered to produce the documents requested no later than 14 days from service of entry of this order.

As to the request for sanctions, the Court is mindful that Chevron filed no opposition. Rule of Court 3.1348(a) specifically addresses this situation, providing: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Failure to oppose or filing of a supplemental response "shall not be deemed an admission that the motion was proper or that sanction should be awarded." (CRC 3.1348(b).)

Code of Civil Procedure sections 2025.450(g)(1) requires sanctions, under specified circumstances, against a party "who unsuccessfully makes or opposes a motion to compel[.]" Under Code of Civil Procedure section 2025.459(a), the Court also has *separate* authority to impose a monetary sanction against a party engaging "in the misuse of the discovery process," which is defined to include "making, without substantial justification, an unmeritorious objection to discovery[.]" (CCP § 2023.010(e).)

That section does not require opposition to a motion to compel.

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by subsequently supplementing the discovery responses or simply not opposing the motion.

Monetary sanctions will be awarded as follows.

Plaintiffs' initial request for \$28,969 is based on \$18,969 expended in meeting and conferring and filing the motion, and an expected additional \$10,000 in filing a reply and appearing at the hearing. The hourly breakdown is reasonable, except that \$930 per hour for one attorney doing most of the

work (13.5 hours) is too much for a routine discovery motion (regardless of the qualifications of the attorney). Those hours are reduced to \$750 per hour, for a reduction of \$2,430. This reduces the \$18,969 figure to \$16,539. As to the anticipated hours, counsel's reply declaration attests to an additional \$11,232 in fees. Again, the \$930 figure is reduced to \$750 for the hours to which it applies (a \$504 reduction). This reduces the additional fees to \$10,728. The two figures add up to \$27,267.

Defendant is ordered to pay the monetary sanction of \$27,267 within 14 days of notice of entry of this order.

16. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: ORDER AUTHORIZING RECEIVER TO WIND UP BUSINESS**

FILED BY: DONELL, STEPHEN

TENTATIVE RULING:

Continued by stipulation and order to **December 18, 2025, 9:00 a.m.**

17. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: TO DIMISS**

FILED BY: AGL ENTERPRISES, LLC A CALIF LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Continued by stipulation and order to **December 18, 2025, 9:00 a.m.**

18. 9:00 AM CASE NUMBER: MSC19-02640

CASE NAME: ALAMMARI VS OCEAN CITIES PIZZA, INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**

FILED BY:

TENTATIVE RULING:

As of 10:10 a.m. December 10, 2025, no compliance statement has been filed. **The parties are ordered to appear.**

19. 9:00 AM CASE NUMBER: MSC20-01999

CASE NAME: SANCHEZ VS ATHERSTONE FOODS, INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**

FILED BY:

TENTATIVE RULING:

As of 10:15 a.m. December 10, 2025, no compliance statement has been filed. **The parties are ordered to appear.**

20. 9:00 AM CASE NUMBER: N25-1529

CASE NAME: CLAIM OF:LIAM SAENZ

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Granted. For good cause, the Court waives the appearance of counsel, the Guardian ad Litem, and the minor.